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JUL 20 2026

APPEAL BRIEF – No. ZBA2026-0001 / BA2026-0001 / ZA2026-0024

Before the Bernalillo County Commission

BERNALILLO COUNTY BUILDING DEPT.

Property: **9600 2nd Street NW, Bernalillo County, New Mexico 87114**

Appellant: Pat Hauser, on behalf of the Maria-Diers Neighborhood Association and the Regional and Corridor Appellant Coalition.

The Coalition comprises of all past and current petition signers supporting the merits of the appeals, including signers who together own at least 20% of the land within 100 feet of the subject property (excluding right-of-way), together with additional appellant signers within the 500-foot standing radius.

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STATEMENT REGARDING SCOPE AND PURPOSE OF THIS APPEAL

This appeal challenges the Planning Commission's July 1, 2026, decision denying Appellant's appeal and approving a conditional use permit for a 60,000-square-foot, high-volume multi-use complex at 9600 2nd Street NW on the constrained Alameda/2nd Street corridor and in a constrained Regional Area, based on procedural due process violations, legal error, and the absence of substantial evidence required under Section 24.

Before addressing the merits, Appellants state plainly what this appeal is, and is not, about. This appeal is a neutral, clear, evidence-based land-use challenge grounded exclusively in traffic engineering standards, procedural due process violations, legal and substantial errors, and the mandatory findings required by Section 24 of the Bernalillo County Zoning Ordinance. It does not challenge, and has never challenged, the Applicant's right to build a house of worship, the religious character of the proposed use, or the presence of a mosque in this community.

Appellants are aware that this proceeding has attracted public attention from individuals and groups whose interest in the property may be motivated by opposition to the Applicant's religious identity rather than by the clear traffic, safety, and procedural record at issue here. Appellants do not join, endorse, or rely on any such anti-religious sentiment, and nothing in this brief should be read as adopting or accommodating it.

Appellants expressly deny any argument, inference, or relief that would treat this Applicant differently than a secular applicant proposing a comparable high-volume use on this same corridor.

The relief Appellants seek is reversal or remand, a project-specific Traffic Impact Analysis at the conditional-use stage, corridor-level study, and neutral, applicable ordinance reforms. That is the same relief Appellants would seek against any applicant, religious or secular, which sought to build a 60,000-gross-square-foot, high-volume assembly complex on this same constrained corridor without a traffic study and without the evidentiary record Section 24 requires.

Appellants' position been, that neutral traffic-safety and procedural standards must be applied